IN THE HIGH COURT OF JUDICATURE AT PATNA

Letters Patent Appeal No.198 of 2025
In
Civil Writ Jurisdiction Case No.11232 of 2024

CNR No. BRHC010214302025

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1. Bihar State University Service Commission through the Chairman, 8th Floor, BSEB Building (ADMIN Block), Budh Marg, Patna, Bihar
2. The Secretary, Bihar State University Service Commission, 8th Floor, BSEB Building (ADMIN Block), Budh Marg, Patna, Bihar
3. The Under Secretary-cum- Public Information Officer, Bihar State University Service Commission, 8th Floor, BSEB Building, Budh Marg, Patna, Bihar.

... ... Appellant/s

Versus

1. The State of Bihar through the Chief Secretary, Government of Bihar, Patna
2. The Principal Secretary, Department of Education, Government of Bihar, Patna
3. The Director, Higher Education, Department of Education, Government of Bihar, Patna
4. The Principal Secretary, Department of General Administration, Government of Bihar, Patna
5. Dr. Randhir Kumar Rana Son of Late Pulkit Prasad Yadav, Resident of Village - Baijnathpur, P.O. - Andauli, P.S. - Kishanpur, District- Supaul, Bihar.

... ... Respondent/s

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with

Letters Patent Appeal No. 216 of 2025
In
Civil Writ Jurisdiction Case No.2573 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission 8th Floor, Bihar School Examination Board Academic Building Buddha Marg, Patna - 800001 through its Chairman.
2. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board Academic Building, Buddha Marg, Patna.
3. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board Academic Building, Buddha Marg, Patna.

... ... Appellant/s

Versus

1. Mukesh Kumar S/o Bishnu Kant Yadav, R/o Village- Maharajganj Lehita, Post Office- Samukhiya, P.S. and District - Banka.
2. The State of Bihar Bihar.

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3. The Principal Secretary, Higher Education Department, Government of Bihar, Patna.
4. The Director, Higher Education Department, Government of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 225 of 2025
In
Civil Writ Jurisdiction Case No.2754 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission through its Chairman, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.
2. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.
3. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.

... ... Appellant/s

Versus

1. Digambar Jha Son of Late Shiv Nandan Jha, Resident at Malpur Singhara, Post- Singhara, Police Station- Mahua, District- Vaishali.
2. Lalji Prasad Yadav, Son of Late Narshing Prasad Yadav, Residing at Shivganj Ward No.- 7, Post- Narkatiaganj Police Station- Shikarpur, District- West Champaran at Bettiah.
3. Basudeo Sah, Son of Shri Shivan Sah, Resident of Villag-e Bibhupur Matiarwa, Post- Neneya, Police Station- Paharpur, District- East Champaran.
4. The State of Bihar through the Additional Chief Secretary, Department of Education, Government of Bihar, Patna.
5. The Additional Chief Secretary, Department of Education, Government of Bihar, Patna.
6. The Director, Higher Education, Government of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 272 of 2025
In
Civil Writ Jurisdiction Case No.2763 of 2025

CNR No. BRHC010214302025

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Manjuli Kumari Wife of Dr. Madhur Kumar Verma, Resident of Mohalla Agarwa, Post and Police Station- Motihari Town, District- East Champaran, Motihari.

... ... Appellant/s

Versus

WEB COPY

1. The State of Bihar through the Additional Chief Secretary Department of Education, Government of Bihar, Patna.
2. The Additional Chief Secretary, Department of Education, Government of Bihar, Patna.
3. The Director Higher Education, Government of Bihar, Patna.
4. The Bihar State University Service Commission, through its Chairman, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.
5. The Chairman, Bihar School Examination Board Academic Building, Budh Marg, Patna.
6. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 273 of 2025
In
Civil Writ Jurisdiction Case No.2755 of 2025

CNR No. BRHC010214302025

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Shipra Anand Wife of Deependra Bhardwaj, Resident of Rahul Nagar, Khabra, Post - Khabra, Police Station - Sadar, District- Muzaffarpur.

... ... Appellant/s

Versus

1. The State of Bihar through the Additional Chief Secretary, Department of Education, Government of Bihar, Patna.
2. The Additional Chief Secretary, Department of Education, Government of Bihar, Patna.
3. The Director, Higher Education, Government of Bihar, Patna.
4. The Bihar State University Service Commission, Through its Chairman, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.
5. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.
6. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 283 of 2025
In
Civil Writ Jurisdiction Case No.3014 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission Patna, through its

WEB COPY

Chairman.

2. The Chairman, Bihar State University Service Commission, Patna.
3. The Secretary, Bihar State University Service Commission, Patna.

... ... Appellant/s

Versus

1. Rakhi Kumari D/o - Vinod Shankar Yadav, R/o - Ward no. 19, Karpuri Chowk, Madhepura, Madhepura, Bihar - 852113.
2. The State of Bihar through the Principal Secretary, Department of Education, Government of Bihar, Patna.
3. The Additional Chief Secretary, Department of Education, Government of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 284 of 2025
In
Civil Writ Jurisdiction Case No.3256 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission, through the Chairmqan, 8th Floor, BSEB Building (ADMIN Block), Budh Marg, Patna, Bihar.
2. The Secretary Bihar State University Service Commission 8th Floor BSEB Building (admin block) Budh Marg, Patna, Bihar.
2. The Secretary, Bihar State University Service Commission, 8th Floor, BSEB Building (ADMIN Block), Budh Marg, Patna, Bihar.

... ... Appellant/s

Versus

1. Dr. Kumod Kumar @ Kumod Kumar S/o Jainath Mehta, Resident of Village Halalpur, P.S. - Dhandaha, District- Purnia.
2. The State of Bihar through the Chief Secretary, Government of Bihar, Patna.
3. The Principal Secretary, Department of Education (Higher), Government of Bihar, Patna.
4. The Director, Higher Education, Department of Education, Government of Bihar, Patna.
5. The Principal, Sarvoday College, Govind Sah- Bauku Sha Nagar, Tinghariya, Kursela District Katihar, Pin - 854101.
6. The Registrar, B.N. Mandal University, Laloo Nagar, Madhepura, Bihar, Pin - 852113.

... ... Respondent/s

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with

Letters Patent Appeal No. 318 of 2025
In
Civil Writ Jurisdiction Case No.2756 of 2025

WEB COPY

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission Patna through its Chairman, 8th Floor, Bihar School Examination Board,Academic Building, Budh Marg, Patna, Bihar - 800001.
2. The Chairman, Bihar State University Service Commission Patna, 8th Floor, Bihar School Examination Board, Academic Building, Budh Marg, Patna, Bihar - 800001.
3. The Secretary, Bihar State University Service Commission Patna, 8th Floor, Bihar School Examination Board, Academic Building, Budh Marg, Patna, Bihar - 800001.
4. The Controller of Examination, Bihar State University Service Commission Patna through its Chairman, 8th Floor, Bihar School Examination Board, Academic Building Budh Marg Patna, Bihar - 800001.

... ... Appellant/s

Versus

1. The State of Bihar through the Chief Secretary, Department of Education, Government of Bihar, Patna, Old Secretariat, Patna Bihar.
2. The Additional Chief Secretary, Department of Education Government of Bihar, Patna, Old Secretariat, Patna, Bihar.
3. Mamta Kumari W/o Kamlesh Kumar, R/o House No. 01, Village - Kolhuara, Post - Nagra, P.S. - Kalyanpur, Dist - Samastipur, Naranga, Nauraga, Samastipur, Bihar - 84102.

... ... Respondent/s

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with

Letters Patent Appeal No. 319 of 2025
In
Civil Writ Jurisdiction Case No.2885 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission Patna through its Chairman, Bihar.
2. The Chairman, Bihar State University Service Commission, Patna.
3. The Secretary, Bihar State University Service Commission, Patna.

... ... Appellant/s

Versus

1. The State of Bihar through the Principal Secretary, Department of Education, Government of Bihar, Patna.
2. The Additional Chief Secretary, Department of Education, Government of Bihar, Patna.
3. Kanchan Kumari W/o Pramod Kumar Tarun, Resident of - Village Chhoti Pahari, Behind Sahara Godam, Post - Bari Pahari, P.S. Bypass, Gulzarbagh, P.O. Gulzarbagh, District- Patna, Bihar - 800007.

... ... Respondent/s

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with
Letters Patent Appeal No. 321 of 2025
In
Civil Writ Jurisdiction Case No.3090 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission, through Chairman 8th Floor, Bihar School Examination Board, Academic Building, Budha Marg, Patna, 800001.
2. The Secretary Bihar State University Service Commission 8th Floor, Bihar School Examination Board Academic Building, Budha Marg, Patna, 800001
2. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Budha Marg, Patna-800001.

... ... Appellant/s

Versus

1. Brij Kumar Bhagat Son of Late Bhutan Bhagat Resident of Near North of R.P.S. Engineering College Kailash Puri Police station Danapur District Patna
2. The State of Bihar through Secretary, Higher Education Department, Government of Bihar, Patna.

... ... Respondent/s

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with
Letters Patent Appeal No. 324 of 2025
In
Civil Writ Jurisdiction Case No.2763 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission through its Chairman, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.
2. The Chairman, Bihar School Examination Board Academic Building, Budh Marg, Patna.
3. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.

... ... Appellant/s

Versus

1. Manjuli Kumari Wife of Dr. Madhur Kumar Verma, Resident of Mohalla Agarwa, Post and Police Station - Motihari Town, District- East Champaran, Motihari.
2. The State of Bihar through the Additional Chief Secretary Department of Education, Government of Bihar, Patna.

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3. The Additional Chief Secretary, Department of Education, Government of Bihar, Patna.
4. The Director Higher Education, Government of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 325 of 2025
In
Civil Writ Jurisdiction Case No.3207 of 2025

CNR No. BRHC010214302025

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1. The Chairman Bihar State University Service Commission, 8th Floor, B.S.E.B. Academic Building, Budh Marg, Patna- 1
2. The Secretary, Bihar State University Service Commission, 8th Floor, B.S.E.B. Academic Building, Budh Marg, Patna- 1

... ... Appellant/s

Versus

1. Rajan Kumar son of Hari Lal Ram Resident of P.N.T. Road, Indrapuri Colony, Mithanpura, P.S. Mithanpura, Mushhari, District- Muzaffarpur
2. Pankaj Kumar son of Rameqbal Ram Resident of village- Bhaluan, P.S. Barharia, District- Siwan
3. Mukesh Kumar Paswan son of Sadhu Prasad Paswan Resident of Village- Pastwar, P.S.- Mahishi, District- Saharsa
4. Vinod Kumar son of Fuldeo Ram Resident of village- Bathna Mahodat, P.S. Goraul, District- Vaishali, Hajipur
5. Santosh Kumar son of Ram Bilas Ram Resident of village and P.O. Rajson, P.S. Bidupur, District- Vaishali, Hajipur, Bihar
6. The State of Bihar through the Additional Chief Secretary, Department of Education, Government of Bihar, Patna.
7. The Director, Higher education, Government of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 335 of 2025
In
Civil Writ Jurisdiction Case No.17461 of 2024

CNR No. BRHC010214302025

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1. The Chairman, Bihar State University Service Commission, Patna.
2. The Secretary, Bihar State University Service Commission, Patna.

... ... Appellant/s

WEB COPY

Versus

1. The State of Bihar through the Principal Secretary, Education Depart, Government of Bihar, Patna.
2. The Additional Chief Secretary, Education Department, Government of Bihar, Patna.
3. The Secretary, Education Department, Government of Bihar, Patna.
4. Priyanka Bhagat Daughter of Gopal Prasad Bhagat, Resident of Ward No. 13, Station Road, Dumraon, P.S. - Dumraon, District- Buxar.

... ... Respondent/s

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with

Letters Patent Appeal No. 337 of 2025
In
Civil Writ Jurisdiction Case No.17248 of 2024

CNR No. BRHC010214302025

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1. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Budh Marg, Patna - 800001.
2. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Budh Marg, patna - 800001.
3. The Examination Controller, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Budh Marg, Patna - 800001.

... ... Appellant/s

Versus

1. The State of Bihar through the Additional Chief Secretary, Education Department, Govt. of Bihar, Patna.
2. The Director, Higher Education, Education, Education Department, Govt. of Bihar, Patna.
3. Gita Kumari Wife of Pramod Chandravanshi @ Pramod Singh Chandravanshi, Resident of Village - Bagdiha, P.O. and P.S. Guraru, District- Gaya and presently residing at 6, Back of Harding Road, P.S. - Sachivayalaya, District- Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 343 of 2025
In
Civil Writ Jurisdiction Case No.2898 of 2025

CNR No. BRHC010214302025

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WEB COPY

1. The Bihar State University Service Commission through its Secretary, 8th Floor, Bihar School Examination Board, Academic Building, Buddha Marg, Patna- 800001.
2. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Buddha Marg, Patna 800001
3. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Buddha Marg, Patna, 800001.

... ... Appellant/s

Versus

1. Nilima Kumari @ Nalima Kumari Daughter of Shri Sharda Prasad Singh, Resident of 304-A, Mundeshwari Enclave, Akashwani Road, P.O. - Khajpura, P.S. - Khajpura, District - Patna - 800014.
2. The State of Bihar through the Additional Chief Secretary, Education Department, Government of Bihar, Patna.
3. The Additional Chief Secretary, Education Department, Government of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 360 of 2025
In
Civil Writ Jurisdiction Case No.2754 of 2025

CNR No. BRHC010214302025

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1. Digambar Jha Son of Late Shiv Nandan Jha Residing at Malpur Singhara, Post- Singhara, Police Station- Mahua, District- Vaishali.
2. Lalji Prasad Yadav @ Lalji Prasad Yadaw Son of Late Narshing Prasad Yadav Residing at Shivganj Ward No.- 7, Post- Narkatiaganj Police Station- Shikarpur, District- West Champaran at Bettiah.
3. Basudeo Sah, Son of Shri Shivan Sah Resident of Village- Bibhupur Matiarwa, Post- Neneya, Police Station- Paharpur, District- East Champaran.

... ... Appellant/s

Versus

1. The State of Bihar through the Additional Chief Secretary, Department of Education, Government of Bihar, Patna.
2. The Additional Chief Secretary, Department of Education, Government of Bihar, Patna.
3. The Director, Higher Education, Government of Bihar, Patna.
4. The Bihar State University Service Commission, through its Chairman, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg,

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Patna.

5. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.
6. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 392 of 2025
In
Civil Writ Jurisdiction Case No.18300 of 2024

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission Patna through its Chairman, Patna.
2. The Chairman, Bihar State University Service Commission, Patna.
3. The Secretary, Bihar State University Service Commission, Patna.

... ... Appellant/s

Versus

1. The State of Bihar through the Principal Secretary, Department of Education, Government of Bihar, Patna.
2. The Additional Chief Secretary, Department of Education Government of Bihar, Patna.
3. Mohammad Khursheed Alam Ajum S/o - Md. Zafiruddin, Resident of Ward No. - 20, Azad Nagar, Araria, Bihar - 854311.

... ... Respondent/s

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with

Letters Patent Appeal No. 402 of 2025
In
Civil Writ Jurisdiction Case No.2900 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission Patna through its Chairman.
2. The Chairman, Bihar State University Service Commission, Patna.
3. The Secretary, Bihar State University Service Commission, Patna.

... ... Appellant/s

Versus

1. Jitendra Kumar S/o- Jwala Prasad R/o- Ward No.- 8, Singhaul Tola, Karubigha, Thana- Nimchak Bathani, P.O.- Karubigha, District- Gaya, Bihar- 803116.

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2. Ravikant Kumar, S/o Rama Bali Prasad R/o- 1, Maroofganj, Near Railway Cinema Station Road, Gaya, Bihar- 823001.

3. Rani Minakshi, D/o Chandra Mauli Prasad R/o- Mawar Path, Biscoman Colony, Sabai Talab, Sampathchak, Patna, Bihar- 800007.

4. Raj Kumar Mallik, S/o- Lakhan Mallik R/o- Karharba, Thadhi, Tharhi, Ladania, Madhubani, Bihar- 847232.

5. Nirmal Kumar, S/o- Rajendra Prasad Mahto R/o- Barhauna, Madhepura, Shah Alam Nagar, Bihar- 852210.

6. Rubi Kumari, W/o- Shrikant Suman R/o- ward No.- 3, Anand Vihar, Madhepura, Bihar-852113.

7. Madhulika Kumari, D/o- Nawal Kishore Bharti R/o- 86 B, Gali- 15, Palam Railway Station, Sadh Nagar, Palam Colony, Palam Village, P.O.- Palam Village, District- South West Delhi, Delhi-110045, Presently Residing at- Village- Ranibari South Mathai, P.O.- Rukundipur, P.S.- Daroundha, District- Siwan, Bihar- 841238.

8. Mritunjay Kumar, S/o- Surendra Prasad Yadav R/o- SA 6, Public 1B 4, Lane No.- 2, Om Nagar Colony, Benipur, Varanasi, Sarnath, Presently Residing at Chankya, Modern School, Near LP Shahi Inter-Mediate College, Jagannath Patahi, Muaffarpur, Bihar- 843113.

9. Md. Mozammil, S/o- Md. Anwar R/o- Ward no.- 12, Phulwaria- 03, Naya Tola, Phulwaria, Begusarai, Barauni, Bihar- 851112.

10. Md. Aslam, S/o- Rahamtulah R/o- Laxmipur, Siwan, Bihar- 841226.

11. Pankaj Kumar, S/o- Shiv Narayan Yadav Gosai Tola, Ward No.- 06, Murtiganj, Madhepura, Mrliganj, Bihar- 852122.

12. Piyush Ranjan, S/o- Guru Bachan Bhakta R/o- Pipra, Siwan, Kherai, Bihar- 841231.

13. Satyendra Prasad, S/o- Baijnath Prasad Alekh Tola, Sitab Dhara, Shitab Diara, Saran, Bihar- 841312.

14. Videwati, D/o- Ramnath Pandeya R/o- Ward No.- 16, Ismailpur, Hajipur, Vaishali, Bihar- 844102.

15. Bipin Kumar Rai, S/o- Janardan Rai R/o- Dighwalia, Siwan, Bihar- 841203.

16. Kumari Vijeta, R/o- Jagdispur, Jagdispur KO, Jahdispur, Sheohar, Bihar- 843316.

17. Shiv Kumar, S/o- Rajeshwar Prasad Raman R/o- Khutauna Navtoli, Ward No.- 15, Khutauna, Madhubani, Bihar- 847227.

18. Jagdeep Kumar, S/o- Dineshwar Prasad Singh R/o- Ward No.- 11, Pansalawa, Dumri, Dumri, Khagaria, Bihar- 852161.

19. Vibha Singh, C/o- Ravindra Kumar Singh Ward No.- 17, Laxmana Nagar, Ring Bandh, Sitamarhi, Bhabdepur, Sitamarhi, Bihar- 843302.

20. Dilip Kumar, S/o- Ram Sagar Mahto R/o- Near Kali Pokhar, Bharokhra, Samastipur, Bihar- 848130.

21. Arun Thakur, S/o- Dukhi Thakur R/o- Shivram, Shivram, Semraon, Shivram, Darbhanga, Bihar- 847233.

22. Shravan Kumar Thakur, S/o- Rajendra Thakur R/o- Narayanpur, Ward no.-

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5, Kothia, Bharaul, Kotjia Bharam, Jhanjharpur, Madhubani, Bihar- 847404.

23. Suresh Kumar Mahto, S/o- Ganesh Mahto R/o- Andhra Tharhi, Andhra Tharhi, Madhubani, Bihar- 847401.

24. Sangeeta Yadav, D/o- Rajendra Yadav R/o- Hirpur, Vaishali, Jhandha, Bihar- 844505.

25. The State of Bihar, through the Principal Secretary, Department of Education, Government of Bihar, Patna.

26. The Additional Chief Secretary, Department of Education, Government of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 403 of 2025
In
Civil Writ Jurisdiction Case No.3163 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission through the Chairman, 8th Floor, BSEB Building (ADMIN Block), Buddha Marg, Patna, Bihar

2. The Secretary, Bihar State University Service Commission, 8th Floor, BSEB Building (ADMIN Block), Buddha Marg, Patna.

... ... Appellant/s

Versus

1. Dr. Pankhuri Priya @ Pankhuri Priya D/O Ramkumar Thakur, W/O Rakesh Kumar Pandey R/O Village - Kora, P.S. - Singhavada, District - Darbhanga.

2. The State of Bihar through the Chief Secretary, Government of Bihar, Patna.

3. The Principal Secretary, Department of Education (Higher), Government of Bihar, Patna.

4. The Director, Higher Education, Government of Bihar, Patna

... ... Respondent/s

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with

Letters Patent Appeal No. 507 of 2025
In
Civil Writ Jurisdiction Case No.3162 of 2025

CNR No. BRHC010214302025

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1. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Budh Marg, Patna (Bihar).

2. The Secretary, Bihar State University Service Commission, Budh Marg, Patna.

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... ... Appellant/s

Versus

1. Dr. Md. Rafat Parwez S/o Md .Salimuddin R/O Nandan Singh Tola, Machhli Market, Ward No. 14, P.O.- Saharsa Sader, P.S. Saharsa, District-Saharsa.
2. The State of Bihar through the Additional Chief Secretary, Department of Education, Bihar, Patna.
3. The Principal Secretary, Department of Education, Government of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 508 of 2025
In
Civil Writ Jurisdiction Case No.2852 of 2025

CNR No. BRHC010214302025

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1. Bihar State University Service Commission through its Secretary, 8th Floor, Bihar School Examination Board Academic Building, Budha Marg, Patna, Bihar.
2. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Budha Marg, Patna, Bihar.
3. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Budha Marg, Patna, Bihar.

... ... Appellant/s

Versus

Prabin Kumar S/o- Surendra Prasad Mandal R/o- Village- Mungroura, Post-Jamalpur, P.S.- East Colony, District - Munger.

... ... Respondent/s

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with

Letters Patent Appeal No. 511 of 2025
In
Civil Writ Jurisdiction Case No.3013 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission 8th Floor, Bihar School Examination Board Academic Building, Buddha Marg, Patna- 800001 through its Secretary.
2. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board Academic Building, Buddha Marg, Patna.

... ... Appellant/s

Versus

WEB COPY

1. Smriti Rani D/o Kamlesh Sharma, R/o Nawada Chowk Ara, P.S.- Arrah, District- Bhojpur - 802301.
2. The State of Bihar through the Principal Secretary, Department of Education, Government of Bihar, Patna.
3. The Additional Chief Secretary, Education Department, Government of Bihar, Vikash Bhawan, New Secretariat, Patna, Bihar.
4. The Director, Higher Education Department, Government of Bihar, Vikash Bhawan, New Secretariat, Patna, Bihar.

... ... Respondent/s

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with

Letters Patent Appeal No. 512 of 2025
In
Civil Writ Jurisdiction Case No.3233 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission Patna through its Chairman, 8th Floor, Bihar School Examination Board, Academic Bhawan, Buddha Marg, Patna-800001, Bihar.
2. The Chairman, Bihar State University Service Commission, Patna, 8th Floor, Bihar School Examination Baord, Academic Bhawan, Buddha Marg, Patna 800001, Bihar.
3. The Secretary, Bihar State University Service Commission, Patna, 8th Floor, Bihar School Examination Board, Academic Bhawan, Buddha Marg, Patna 800001, Bihar.

... ... Appellant/s

Versus

1. Uttam Kumar S/o Vijay Kumar, R/o Mohalla- Gewal Bigha, P.S.- Rampur, District- Gaya.
2. Surya Prakash Kumar S/o Shri Jay Prakash Paswan, R/o Village- Chausa, P.S- Chausa, District- Madhepura.
3. Rajesh Thakur S/o Late Karu Thakur, R/o Mohalla- Rajoundha, P.O. and P.S- Roushanganj, Block- Bankey Bazar, District- Gaya.
4. Dr. Abhishek Kumar S/o Gopal Prasad Srivastava, R/o Mohalla-47, Badhai Mohalla Ratu Road, P.O.- G.P.O., Ranchi, District- Ranchi, (Jharkhand).
5. Mukesh Kumar Thakur S/o Yadubir Thakur, R/o Village and P.O.- Kothra, Via- Baheri, P.S.- Hayaghat, District- Darbhanga.
6. Ramashankar Prasad S/o Rambriksha Prasad, R/o Village- Pipra, Lar, P.S.- Kohra, District- Deoria (U.P).
7. Ajay Kumar S/o Baban Prasad Singh, R/o Village- Balirampur, P.O.- Pajar, P.S.- Kargahar, District- Rohtas.

... ... Respondent/s

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with

Letters Patent Appeal No. 514 of 2025
In
Civil Writ Jurisdiction Case No.3220 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission 8th Floor, Bihar School Examination Board Academic Building, Buddha Marg, Patna- 800001 through its Secretary.
2. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Buddha Marg, Patna- 800001.

... ... Appellant/s

Versus

1. Nirja Kumari W/o Umesh Kumar Singh, R/o village- Kaithi, P.O. and P.S.- Sanjhauli, District- Rohtas (Sasaram), Bihar- 802220.
2. The State of Bihar through the Principal Secretary, Department of Education, Government of Bihar, Patna.
3. The Additional Chief Secretary, Education Department, Government of Bihar, Vikash Bhawan, New Secretariat, Patna, Bihar.
4. The Director, Higher Education Department, Government of Bihar, Vikash Bhawan, New Secretariat, Patna, Bihar.

... ... Respondent/s

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with

Letters Patent Appeal No. 515 of 2025
In
Civil Writ Jurisdiction Case No.2752 of 2025

CNR No. BRHC010214302025

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1. The Chairman, Bihar State University Service Commission, Patna.
2. The Secretary, Bihar State University Service Commission, Patna.

... ... Appellant/s

Versus

1. Manish Kumar Singh S/o Yugal Kishore Singh R/O Village - Naya Tola Hasanpur, P.O.- Hasanpur Garuda, P.S. Mahnar Thana, Vaishali, (Bihar), Pin - 844506
2. The State of Bihar through the Additional Chief Security, Educational Department, Govt. of Bihar, Patna.
3. The Director, Higher Education, Govt. of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 516 of 2025
In
Civil Writ Jurisdiction Case No.3221 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission through the Chairman, 8th BSEB Building (ADMIN Block), Budh Marg, Patna, Bihar.
2. The Secretary, Bihar State University Service Commission, 8th Floor, BSEB Building (ADMIN Block), Budh Marg, Patna, Bihar.

... ... Appellant/s

Versus

1. Dr Nishant Parveen @ Nishant Parveen W/o Khurseed Ahmad Khan, R/o K.N. 47/7A, Ghausnagar, P.O. - G.T.B. Nagar, P.S.- Kareli, District- Allahabad (Prayagraj), U.P. 211016.
2. The State of Bihar through the Chief Secretary, Government of Bihar, Patna.
3. The Principal Secretary, Department of Education (Higher), Government of Bihar, Patna.
4. The Director, Higher Education, Department of Education, Government of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 517 of 2025
In
Civil Writ Jurisdiction Case No.3012 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Buddha Marga, Patna-800001,
2. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Buddha Marga, Patna-800001

... ... Appellant/s

Versus

1. Manisha Kumari W/o Ravi Kant Singh Resident of West Mohan Bigha, New G.T.Road, Dehri On Sone, Ward No. 16, P.O.- Dalmianagar, P.S. Danwarua, Rohtas District- Rohtas (Sasaram), Bihar-821305.
2. The State of Bihar through the Principal Secretary, Department of Education, Government of Bihar, Patna
3. The Additional Chief Secretary, Education Department, Government of Bihar, Vikash Bhawan, New Secretariat, Patna, Bihar
4. The Director, Higher Education Department, Government of Bihar, Vikash

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Bhawan, New Secretariat, Patna, Bihar.

... ... Respondent/s

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with

Letters Patent Appeal No. 518 of 2025
In
Civil Writ Jurisdiction Case No.2975 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission through its Chairman, 8th Floor, BSEB Building (Admn Block), Budh Marg, Bihar, Patna, Bihar.
2. The Secretary, Bihar State University Service Commission, 8th Floor, BSEB Building (Admn Block), Budh Marg, Patna, Bihar.

... ... Appellant/s

Versus

1. Ranjeeta Kumari D/o Ramashray Prasad Singh, R/o Mohalla - Lakhibagh, Police Station - Muffasil in the district of Gaya.
2. The State of Bihar through the Principal Secretary, Department of Education, Government of Bihar, Patna.
3. The Principal Secretary, Department of Education, Government of Bihar, Patna.
4. The Director, Higher Education, Department of Education, Government of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 519 of 2025
In
Civil Writ Jurisdiction Case No.2605 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Budh Marg, Patna through its Secreary.
2. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Budh Marg, Patna.
3. The Secretary-Cum-Public Information Officer, Bihar State University Service Commission, 8th Floor, Bihar, Patna.

... ... Appellant/s

Versus

1. Arvind Kumar Singh S/o Kamal Prasad Singh Resident of East Bypass, Jawahar Tola, Post Office-Aro, Police Station-Nawada, District- Bhojpur.

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2. The State of Bihar through Principal Secretary, Education Department, Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 520 of 2025
In
Civil Writ Jurisdiction Case No.2728 of 2025

CNR No. BRHC010214302025

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1. The State of Bihar University Service Commission, through its Secretary, Buddha Marg, Bihar, Patna.
2. The Chairman of the Bihar State University Service Commission, Buddha Marg, Bihar, Patna.

... ... Appellant/s

Versus

1. Shyam Murti Bharti S/o Ram Parikshan Paswan Village-Benipur, Post Benipur, P.S. Bahera, District Darbhanga, Bihar-847103
2. The State of Bihar through the Chief Secretary, Government of Bihar, Patna.
3. The Additional Chief Secretary, Education Department, Government of Bihar, Patna.

... ... Respondent/s

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with

Letters Patent Appeal No. 523 of 2025
In
Civil Writ Jurisdiction Case No.2755 of 2025

CNR No. BRHC010214302025

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1. The Bihar State University Service Commission, Through it Chairman, 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna
2. The Chairman, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board 8th Floor, Bihar School Examination Board Academic Building, Budh Marg, Patna
3. The Secretary, Bihar State University Service Commission, 8th Floor, Bihar School Examination Board, Academic Building, Budh Marg, Patna

... ... Appellant/s

Versus

1. Shipra Anand, W/o Deependra Bhardwaj, R/O Rahul Nagar, Khabra, Post-Khabra, Police Station- Sdar, District- Muzaffrpur

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2. The State of Bihar Through The Additional Chief Secretary, Department of Education, Government of Bihar, Patna

3. The Additional Chief Secretary, Department of Education, Government of Bihar, Patna

4. The Director, Higher Education Department, Government of Bihar, Patna

... ... Respondent/s

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Appearance :

(In Letters Patent Appeal No. 198 of 2025)

For the Appellant/s : Mr. Tuhin Shankar, Adv.

For the Respondent/s : Mr.Additional Advocate General (3)
Mr. Shashi Shekhar Tiwary, Adv.
Ms. Gragy Sinha, Adv.

For the Intervenor Resp. : Mr. S. Azeem, Adv.
(I.A. No. 2 of 2025)

For the Intervenor Resp. : Mr. Satyabir Bharti, Sr. Adv.
(I.A. No. 3 of 2025) Ms. Aastha Prakash, Adv.
Mr. Abhishek Anand, Adv.
Ms. Kanupriya, Adv.

For the Intervenor Resp. : Mr. Apurva Kumar, Adv.
(I.A. No. 4 of 2026)

For the BSUSC : Mr. P.K. Shahi, Sr. Adv.
Mr. Tuhin Shankar, Adv.

For the Intervenor Resp. : Mr. Ranjan Kumar Sinha, Adv.
(I.A. No. 5 of 2026) Ms. Jyoti Kumari, Adv.
Mr. Raju Patel, Adv.

(In Letters Patent Appeal No. 216 of 2025)

For the Appellant/s : Mr. P.K. Shahi, Sr. Adv.
Mr. Tuhin Shankar, Adv.
Mr. Rakesh Kumar Singh, Adv.

For the State : Mr. Additional Advocate General (3)
Mr. Sanjay Kumar Shrivastava, AC to AAG-3

For the Respondent/s : Mr. Diwakar Yadav, Adv.

(In Letters Patent Appeal No. 225 of 2025)

For the Appellant/s : Mr. Pawan Kumar, Adv.
Mr. Raghav Vats, Adv.
Mr. Shubham Kumar, Adv.

For the State : Mr. Additional Advocate General (13)

For the Respondent/s : Mr. Purushottam Kumar Jha, Adv.
Mr. Avanindra Kumar Jha, Adv.
Mr. Bishwash Vijeta, Adv.
Mr. Ram Naresh Jha, Adv.

(In Letters Patent Appeal No. 272 of 2025)

For the Appellant/s : Mr. Purushottam Kumar Jha, Adv.
Mr. Avanindra Kumar Jha, Adv.
Mr. Bishwash Vijeta, Adv.
Mr. Ram Naresh Jha, Adv.

For the State : Mr. Additional Advocate General (5)

For the BSUSC : Mr. Pawan Kumar, Adv.
Mr. Raghav Vats, Adv.
Mr. Shubham Kumar, Adv.

(In Letters Patent Appeal No. 273 of 2025)

For the Appellant/s : Mr. Purushottam Kumar Jha, Adv.
Mr. Avanindra Kumar Jha, Adv.
Mr. Bishwash Vijeta, Adv.

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		Mr. Ram Naresh Jha, Adv.
For the State	:	Mr. Anjani Kumar, AAG-4
		Dr. Abhishek Kumar, AC to AAG-4

(In Letters Patent Appeal No. 283 of 2025)

For the Appellant/s	:	Mr. Pawan Kumar, Adv.
		Mr. Raghav Vats, Adv.
		Mr. Shubham Kumar, Adv.
For the State	:	Mr. Addl. Advocate General (13)

(In Letters Patent Appeal No. 284 of 2025)

For the Appellant/s	:	Mr. Pawan Kumar, Adv.
		Mr. Raghav Vats, Adv.
For the State	:	Mr. Addl. Advocate General (13)
For the Resp. No. 1	:	Mr. Sanjay Kumar, Adv.
		Ms. Rashmi Kumari, Adv.
		Ms. Damini, Adv.
		Mr. Vishnu Manjari, Adv.

(In Letters Patent Appeal No. 318 of 2025)

For the Appellant/s	:	Mr. P.K. Shahi, Sr. Adv.
		Mr. Tuhin Shankar, Adv.
For the Respondent/s	:	Mr. Harsh Kaushal, Adv.
		Ms. Annapurna Sinha, Adv.
		Mr. Ashish Kumar, Adv.
		Mr. Aman Raj, Adv.
		Mr. Anjali Tulshiyan, Adv.

(In Letters Patent Appeal No. 319 of 2025)

For the Appellant/s	:	Mr. P.K. Shahi, Sr. Adv.
		Mr. Tuhin Shankar, Adv.
For the Respondent/s	:	Mr.

(In Letters Patent Appeal No. 321 of 2025)

For the Appellant/s	:	Mr. Pawan Kumar, Adv.
For the State	:	Mr. Additional Advocate General (9)
For the Resp. No. 2	:	Mr. Harendra Prasad Singh, AAG-8
		Mr. Mrigendra Kumar, AC to AAG-8
For the Resp. No. 1	:	Mr. Gopal Govind Mishra, Adv.

(In Letters Patent Appeal No. 324 of 2025)

For the Appellant/s	:	Mr. Pawan Kumar, Adv.
		Mr. Raghav Vats, Adv.
For the State	:	Mr. Additional Advocate General (5)
For the Respondent/s	:	Mr. Purushottam Kumar Jha, Adv.
		Mr. Avanindra Kumar Jha, Adv.
		Mr. Bishwash Vijeta, Adv.
		Mr. Ram Naresh Jha, Adv.

(In Letters Patent Appeal No. 325 of 2025)

For the Appellant/s	:	Mr. Pawan Kumar, Adv.
		Mr. Shubham Kumar, Adv.
For the State	:	Mr. Additional Advocate General (13)
For the Res. Nos. 1 to 5	:	Mr. Dinesh Maharaj, Adv.
		Mr. Satish Kumar Singh, Adv.

(In Letters Patent Appeal No. 335 of 2025)

For the Appellant/s	:	Mr. P.K. Shahi, Sr. Adv.
		Mr. Tuhin Shankar, Adv.
For the Respondent/s	:	Mr.

(In Letters Patent Appeal No. 337 of 2025)

For the Appellant/s	:	Mr. P.K. Shahi, Sr. Adv.
		Mr. Tuhin Shankar, Adv.
For the Respondent/s	:	Mr.

(In Letters Patent Appeal No. 343 of 2025)

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For the Appellant/s : Mr. Binod Jee Verma, Adv.
For the Respondent/s : Ms. Namrata Dubey, Adv.
(In Letters Patent Appeal No. 360 of 2025)
For the Appellant/s : Mr. Purushottam Kumar Jha, Adv.
Mr. Avanindra Kumar Jha, Adv.
Mr. Bishwash Vijeta, Adv.
Mr. Ram Naresh Jha, Adv.
For the Respondent/s : Mr. Addl. Advocate General (13)
(In Letters Patent Appeal No. 392 of 2025)
For the Appellant/s : Mr. P.K. Shahi, Sr. Adv.
Mr. Tuhin Shankar, Adv.
For the Respondent/s : Mr.
(In Letters Patent Appeal No. 402 of 2025)
For the Appellant/s : Mr. Pawan Kumar, Adv.
Mr. Raghav Vats, Adv.
For the State : Mr. Additional Advocate General (13)
For the Respondent/s : Mr. Sachin Kumar, Adv.
Ms. Kumari Samridhi, Adv.
Mr. Parkhri Pankaj, Adv.
(In Letters Patent Appeal No. 403 of 2025)
For the Appellant/s : Mr. P.K. Shahi, Sr. Adv.
Mr. Rakesh Kumar Singh, Adv.
For the State : Mr. Addl. Advocate General (13)
For the Resp. No. 1 : Mr. Sanjay Kumar, Adv.
Ms. Rashmi Kumari, Adv.
Ms. Damini, Adv.
Mr. Vishnu Manjari, Adv.
(In Letters Patent Appeal No. 507 of 2025)
For the Appellant/s : Mr. P.K. Shahi, Sr. Adv.
Mr. Rakesh Kumar Singh, Adv.
For the State : Mr. Additional Advocate General (13)
For the Respondent/s : Mr. Amarjeet Prabhakar, Adv.
Mr. Prakash Chandra Jha, Adv.
(In Letters Patent Appeal No. 508 of 2025)
For the Appellant/s : Mr. Rakesh Kumar Singh, Adv.
For the Respondent/s : Mr.
(In Letters Patent Appeal No. 511 of 2025)
For the Appellant/s : Mr. Rakesh Kumar Singh, Adv.
For the State : Mr.Addl. Advocate General (13)
For the Respondent/s : Mr. Amaresh Kumar Sinha, Adv.
Ms. Deeksha, Adv.
Mr. Ranjeet Ranjan, Adv.
(In Letters Patent Appeal No. 512 of 2025)
For the Appellant/s : Mr. Rakesh Kumar Singh, Adv.
For the Respondent/s : Mr. Ram Niwas Prasad, Adv.
(In Letters Patent Appeal No. 514 of 2025)
For the Appellant/s : Mr. Rakesh Kumar Singh, Adv.
For the Respondent/s : Mr. Addl. Advocate General (13)
(In Letters Patent Appeal No. 515 of 2025)
For the Appellant/s : Mr. Rakesh Kumar Singh, Adv.
For the State : Mr. Bindhyachal Rai, AAG-15
(In Letters Patent Appeal No. 516 of 2025)
For the Appellant/s : Mr. Rakesh Kumar Singh, Adv.
For the State : Mr. Bindhyachal Rai, AAG-15
For the Resp. No. 1 : Mr. Sanjay Kumar, Adv.
Ms. Rashmi Kumari, Adv.
Ms. Damini, Adv.

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Mr. Vishnu Manjari, Adv.

(In Letters Patent Appeal No. 517 of 2025)

For the Appellant/s : Mr. Rakesh Kumar Singh, Adv.
For the State : Mr. Bindhyachal Rai, AAG-15
For the Respondent/s : Mr. Amaresh Kumar Sinha, Adv.
Ms. Deeksha, Adv.
Mr. Ranjeet Ranjan, Adv.

(In Letters Patent Appeal No. 518 of 2025)

For the Appellant/s : Mr. Rakesh Kumar Singh, Adv.
For the State : Mr. Bindhyachal Rai, AAG-15
For the Respondent/s : Mr. Sunil Kumar, Adv.

(In Letters Patent Appeal No. 519 of 2025)

For the Appellant/s : Mr. Rakesh Kumar Singh, Adv.
For the State : Mr. Bindhyachal Rai, AAG-15

(In Letters Patent Appeal No. 520 of 2025)

For the Appellant/s : Mr. Rakesh Kumar Singh, Adv.
For the State : Mr. Bindhyachal Rai, AAG-15
For the Respondent/s : Mr. Shyam Murti Bharti, Adv.
Mr. Gaurav Kumar, Adv.
Mr. Suraj Prakash, Adv.

(In Letters Patent Appeal No. 523 of 2025)

For the Appellant/s : Mr. Rakesh Kumar Singh, Adv.
For the State : Mr. Addl. Advocate General (04)
For the Respondent/s : Mr. Purushottam Kumar Jha, Adv.
Mr. Avanindra Kumar Jha, Adv.
Mr. Bishwash Vijeta, Adv.
Mr. Ram Naresh Jha, Adv.

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CORAM: HONOURABLE THE CHIEF JUSTICE
and
HONOURABLE MR. JUSTICE HARISH KUMAR

ORAL JUDGMENT
(Per: HONOURABLE THE CHIEF JUSTICE)

Date : 05-10-2026

These appeals arise from a common order/judgment dated 20th February 2025, whereby the learned Single Judge has decided 26 writ petitions by stating in paragraph-15 onwards as under:

> *"15. The Division Bench in LPA No. 604 of 2023 has finally settled the issue relating to reservation in excess of 50 percent quota. Thereafter, the Commission proceeded to come out with an important notice No. 754 dated 14.10.2024, which relates to history subject, however, it has been informed*

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just now by learned counsel appearing on behalf of the Commission that in respect of all the subjects, such important notices have been issued not to delay the selection process. Subsequent to the notice in respect of all the subjects, candidates had filed their objection fulfilling the condition no. 15 and all the shortlisted candidates have been notified vide important notice No. 238 dated 23.01.2025 in respect of history subjects and other which contains the list of UID number wise listing of such candidates, whose applications were accepted and they were required to face the interview. However, it was further detected by the Commission that in absence of cut-off prescribed category-wise for reserved and unreserved candidates though the applications were accepted, they have not been called for the interview for the said purposes. The delay and repeated inaction on the part of the commission like non-detection of creamy layer certificate and other documents required as per the terms and conditions of the advertisement to denial of the prospecting candidates to face interview, they filed several writ petitions before this Court.

16. A co-ordinate Bench of this Court in CWJC No. 2677 of 2025, arising out of the advertisement dated 21.09.2020 taking into consideration the merits of the case, has directed the Commission to seek instruction from the Principal of the College and the Registrar of the University, as to whether, the teaching experience certificate submitted by the petitioners of the said writ petition is genuine or a forged document and had directed the Commission to file its counter affidavit. This Court has verified from the said fact that before the exercise has been completed by the Commission, they have restrained the petitioner, namely, Dinesh Kumar Gupta, of the said writ petition from facing interview.

17. In course of hearing, it has

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been informed that several writ petitions were disposed of and the aggrieved parties have preferred several SLP(s) before the Apex Court. One of the SLP bearing Special Leave to Appeal (C) No. 11293 of 2024 has been filed by such candidate.

18. I find that the Commission till date has not exercised in totality, at the same time, has announced the last date of interview to be held on 24.02.2025. The order dated 18.02.2025 passed by a co-ordinate Bench of this Court in CWJC No. 2677 of 2025 will hardly matter in respect of the candidates, who have been shortlisted and their candidature in their Class/Subject/Category has been rejected by the Commission on one ground or other before complete exercise is yet to be done by the Commission till date. The decision of the authority can only be said to not taken in public interest and it would be iniquitous in not allowing in such circumstances to allow the shortlisted/ ineligible candidates to provisionally face the interview subject to the result of SLP No. 11293 of 2024.

19. Nearly five years have lapsed from the date of advertisement i.e. 21.09.2020 and it has been informed by the learned counsels that many of the petitioners' age has expired or is going to expire, frustrating their entitlement of employment, which is in violation of Articles 14, 16 and 21 of the Constitution of India.

20. In view of the aforesaid facts and circumstances, I direct the Chairman of the Commission to take steps to provisionally call the petitioners for interview on or before the last date i.e. 24.02.2025 or extend the date by taking necessary steps by not to sidestep the rule of natural justice. However, the result of the above exercise in respect of all the petitioners will be subject to the result of the SLP No. 11293 of 2024 and other

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cases pending before the Hon'ble Supreme Court arising out of the advertisement dated 21.09.2020 published by the Commission.

21. Accordingly, the writ petitions are disposed of with the aforesaid direction."

2. The grievance of the appellant, i.e., the Bihar State University Service Commission (hereinafter referred to as "Commission"), as contended by Mr. P. K. Shahi, learned Senior Counsel is that the direction of the learned Single Judge to the Chairman of the Commission to take steps to provisionally call the candidates for interview on or before 24.02.2025 or extend the date by taking necessary steps by not to side-step the rule of natural justice, is clearly untenable, inasmuch as the same was without giving opportunity to the appellant herein to file counter affidavit(s) to meet the case of each of the writ petitioners who are respondents herein and also in respect of writ petitions which were filed but not on the Board of the learned Single Judge.

3. According to Mr. Shahi, initially the matters were listed before the learned Single Judge on 18.02.2025 when they were adjourned to 20th of February 2025 to enable the learned counsels appearing for the appellants take instructions. According to him instructions even if taken could not have substituted the filing of the counter affidavits when the facts are

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disputed. He submits that the subject matter of the challenge before the learned Single Judge was an advertisement issued to the post of Assistant Professor (History) in different State Universities. He also states one subject is also Geography. He states the grievance of the respondents was that they have not been called for the interview.

4. According to Mr. Shahi, the denial of interview process to the respondents was for certain justifiable reasons. In any case, it is his submission that without adverting and deciding the justification of those reasons, the writ petitions could not have been disposed of, that too with a direction to call the respondents for interview process. In other words the respondent's eligibility was required to be determined first before a direction in the manner is given. He submits that the result of the selection process of those candidates who meet the eligibility has been finalized, though after the impugned order. In any case, it is his submission that the last selection process was undertaken in the year 2014. Even this selection process initiated in the year 2020 is not complete even after six years of the issuance of the advertisement. He states it is not in public interest to keep the posts vacant.

5. He states appropriate shall be that the impugned order passed by the learned Single Judge is set aside and the

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writ petitions are revived to enable the appellants herein file counter affidavits in individual writ petitions, to be considered by the learned Single Judge for a final decision in the petitions.

6. On the other hand, the learned counsel for the respondents submit that there is no illegality in the order passed by the learned Single Judge, inasmuch as, the respondents herein have been denied the right to appear in the interview for justifiable reasons, and in that sense the only order which could have been passed by the learned Single Judge is to provisionally allow the respondents to appear in interview, and after such a process is undertaken, the appointments be finalized. They submit that nothing precludes the appellants herein to still call the respondents for the interview and accelerate the process so that the final result can be declared at the earliest, and the posts are filled.

7. Having heard the learned counsel for the parties, we are of the view that the submissions made by Mr. Shahi, which have not been contested, inasmuch as, only two days were given to the counsel for the appellants to take instructions, and pursuant thereto, the learned Single Judge without calling upon the appellants to file counter affidavits has heard the petitions, including those petitions, which were only filed are appealing. We may state here that one of the counsel for the

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respondent in one writ petition has stated that the appellants were given repeated time to file counter affidavit, but the same was not filed. In that sense, if the appellants have not filed counter affidavit in one writ petition despite opportunities, the appellants would not have filed the same in other petitions even if time was granted. So no prejudice has been caused to the appellants.

8. Though the submission looks appealing on a first blush but on a deeper consideration, we are of the view the learned Single Judge should have granted at least one opportunity to the appellants to file a counter affidavit to meet the individual cases of the respondents/petitioners in the writ petitions, and then should have decided the writ petitions based on those facts. The learned Single Judge having not done that, there is a serious infringement of principles of natural justice. It follows, the impugned order cannot be sustained in the facts.

9. Accordingly, the impugned order dated 20.02.2025 passed in the writ petitions, the details of which find mention in the impugned order, is set aside. The writ petitions are revived on the Board of the learned Single Judge.

10. The appellants herein shall file their counter affidavits within a period of three weeks to enable the

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respondents herein file their rejoinder within one week thereafter, to enable the learned Single Judge decide the writ petitions, based on the pleadings of the parties, in accordance with law.

11. We make it clear that all the appointments to be made on the post of Assistant Professor (History)/(Geography) shall be subject to the outcome of the writ petitions, to be decided by the learned Single Judge. As a request has been made by the counsel for the respondents for an early disposal of the writ petitions, we grant liberty to the counsel to make a request to the learned Single Judge for deciding the writ petitions, expeditiously.

12. It is made clear that the appointment letters to be issued to the selectees/appointees shall specifically state that their appointment is subject to the outcome of the writ petitions, which are to be decided by the learned Single Judge.

13. All the Letters Patent Appeals, except LPA Nos. 272 of 2025, 273 of 2025 and 360 of 2025, are disposed of.

14. Insofar as the LPA Nos. 272 of 2025, 273 of 2025 and 360 of 2025 are concerned, the learned counsel appearing for the appellants, who were the writ petitioners before the learned Single Judge, states that in view of the order passed by this Court today, these appeals shall not survive, as according to

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him, the issue which the appellants have raised in their writ petitions, which was not considered by the learned Single Judge in the impugned order, shall be agitated by the appellants before the learned Single Judge.

15. The LPA Nos. 272 of 2025, 273 of 2025 and 360 of 2025 are dismissed as withdrawn.

16. Learned counsel for the applicants in I.A. No. 1 of 2025, I.A. No. 3 of 2025, I.A. No. 4 of 2026 and I.A. No. 5 of 2026 in LPA No. 198 of 2025 state that they shall withdraw their interlocutory applications to enable the applicants to file a fresh petition before the learned Single Judge.

17. I.A. No. 1 of 2025, I.A. No. 3 of 2025, I.A. No. 4 of 2026 and I.A. No. 5 of 2026 in LPA No. 198 of 2025 are dismissed as withdrawn.

18. List the writ petitions before the learned Single Judge as per roster after four weeks, i.e., 02.11.2026.

(V. Kameswar Rao, CJ)

(Harish Kumar, J)

Anjani/shivank

AFR/NAFR	
CAV DATE	NA
Uploading Date	12.10.2026
Transmission Date	NA

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